

WanAware Master Subscription Agreement

This Master Subscription Agreement (this “**Agreement**”) contains the terms and conditions that govern your purchase and use of the Services (as defined below), and is a contract between WANAware, Inc., a Delaware (USA) corporation (“**WanAware**”), and you or the entity or organization that you represent, (“**Customer**”), (each a “**Party**” and together the “**Parties**”). This Agreement takes effect when you Order Services from WanAware via the Portal (the “**Effective Date**”).

Capitalized terms not otherwise defined in this Agreement will have the respective meanings assigned to them in Section 23, “**Definitions**.” WanAware may modify this Agreement from time to time, subject to the terms in Section 22.8, “**Changes to this Agreement**.”

If you are using the Services on behalf of an entity or organization: (1) all references to “**Customer**” are to that entity or organization, and (2) you represent that you have the right, power and authority to enter into this Agreement on behalf of Customer.

1. Access and Use

1.1. Use of the Services

By submitting an Order to WanAware, Customer hereby accepts these terms and conditions as governing its purchase of and use of the Services.

- 1.2. WanAware hereby grants to Customer the right to access and use the Services in accordance with the WanAware Policies during the Term for Customer's Environment. Customer acknowledges that use of the Services by Customer is designed solely for the benefit of Customer. For clarity, this limitation does not prevent Customer from sharing reports containing Customer Data that have been generated by the Services with individuals or entities outside of its organization.

1.3. Customer Components

As between the Parties, Customer controls Customer's Environment and its individual components (each, a "**Customer Component**"), whether owned, leased or licensed by Customer, located on Customer's premises or cloud-based, or used by Customer on a software-as-a-service basis or otherwise. Customer is solely responsible for selecting, implementing, activating, deactivating, and configuring the connections between the Customer Components and the Services (the "**Connections**") and configuring the Services, including with respect to how they interoperate with the Customer Components. By connecting a Customer Component with the Services, Customer hereby grants WanAware the right, and is expressly instructing WanAware, to access and interoperate with that Customer Component solely to provide and support the Services. Customer is responsible for ensuring that the access, use, and interoperation of Customer Components with the Services complies with all terms, policies and licenses applicable to the Customer Components and associated data and the Connections (collectively, "**Customer Component Terms**").

1.4. Data

Through Customer's configurations and use of the Services, Customer has control over the types and amounts of data from Customer's Environment, whether proprietary or belonging to third parties, that are submitted to the Services or that are otherwise uploaded to, or processed using, the Services (collectively, but excluding Account Data, "**Customer Data**"). By submitting Customer Data to the Services, Customer hereby grants to WanAware, its Affiliates, and contractors the right, and is expressly instructing WanAware, its Affiliates, and contractors, to Process Customer Data in order to provide and support the Services as described in the WanAware Policies, this Agreement, and the Data Processing Addendum. WanAware will be liable for the actions and omissions of its Affiliates and contractors undertaken in connection with WanAware's performance under this Agreement to the same extent that WanAware would be liable if performing the Services directly. Customer authorizes WanAware to use information about Customer's configuration and use of the Services ("**Usage Data**"), Customer Data and Account Data to: (a) manage Customer's account, including to calculate Fees (as defined in Section 5.1), investigating any claims regarding the Services, WanAware, or other legal disputes; (b) provide and improve the Services and Support (as defined in Section 3); and (c) provide insights, service and feature announcements, and other reporting. Customer agrees that WanAware may use aggregated or anonymized Customer Data and Usage Data for any business purpose during or after the Term of this Agreement, including without limitation to develop and improve WanAware products and services and to create and distribute insights, reports and other materials. WanAware's Processing of Usage Data and Customer Data shall at all times be subject to WanAware's obligations under this Agreement, including those of security under Section 4.1 and confidentiality under Section 7; the Data Processing Addendum, if applicable; and, with respect to Account Data, the Privacy Policy.

1.5. Limited Grant

As between the Parties: (a) Customer owns all right, title and interest in and to Customer's Environment and Customer Data, including in each case all associated Intellectual Property Rights, and (b) WanAware owns all right, title and interest in and to the Services, WanAware Policies, WanAware Operations Data, and Feedback, including in each case all associated Intellectual Property Rights. Both Parties have the right to make use of Threat Actor Data for the purpose of neutralizing and investigating the threat, including for third parties. Except for the rights expressly granted by one Party to the other in this Agreement, all rights are reserved by the granting Party, and no rights are to be considered implicitly granted or waived by any Party. All rights granted by each Party to the other under this Section 1 are limited, nonexclusive and, except as otherwise provided in this Agreement, non-transferable.

2. Availability

- 2.1.** WanAware commits to make the Services Available 99% of the time exclusive of any time the Services are not Available as a result of one or more Exceptions (the “**Availability Standard**”). If the actual Availability of the applicable Standard Service is less than the Availability Standard in any three consecutive months, Customer may terminate an Order for such Standard Service in the calendar month following such two-month period upon written notice to WanAware. In the event of such termination, WanAware will issue a Pro-Rated Refund (as defined in Section 11.4) for such Standard Service.

3. Support

- 3.1.** During the Term, WanAware will provide support to Authorized Users as described in the WanAware support policies, as they may be amended, modified or updated from time to time in WanAware’s sole discretion (“**Support**”). Without limiting any of Customer’s remedies under this Agreement in connection with the Services themselves, Customer’s sole and exclusive remedy for any alleged failure by WanAware to provide Support with reasonable skill, care and diligence shall be re-performance of the applicable Support.

4. Security and Privacy

Each Party has obligations with respect to security and privacy as set forth in this Agreement, which they consider appropriate pursuant to the requirements of Data Protection Laws in light of the nature, purpose, and risks of Processing Personal Data in connection with the Services.

4.1. Security

WanAware will implement and maintain appropriate technical and organizational measures to protect Customer Data and Account Data from accidental loss and from unauthorized access, use, alteration, or disclosure, as described in the Security Measures. Customer is responsible for properly configuring the Services in accordance with the WanAware Policies, enabling single sign-on for Customer’s accounts, and securing access passwords, keys, tokens or other credentials used by Customer in connection with the Services (collectively, “**Customer Credentials**”). Customer agrees to use its best efforts to prevent unauthorized access or use of the Services and to promptly notify WanAware if Customer believes (a) any Customer Credentials have been lost, stolen or made available to an unauthorized third party or (b) an unauthorized third party has accessed the Services or Customer Data.

4.2. Privacy

The Parties agree to comply with the Data Processing Addendum (“**DPA**”), which is incorporated into this Agreement. By entering into this Agreement, Customer is deemed to have accepted the DPA. Customer agrees that it will only transfer Personal Data to the Services to the extent necessary for Customer to access and make use of the Services and to the extent permitted by Data Protection Laws given the nature of the Personal Data and the specifics of the Services and the terms of this Agreement. Except as may otherwise be expressly described in the WanAware Policies, or otherwise agreed by the Parties in writing, Customer shall not use the Services to Process any Sensitive Information and shall use reasonable efforts to restrict the inclusion of other Personal Data in Customer Data, including by applying filters, masking, and other tools and configurations described in the WanAware Policies.

5. Pricing and Fees

5.1. Payment for Services

Except as provided in Section 5.2 with respect to good faith disputes, Customer agrees to pay all fees charged by WanAware for Customer’s use of Services in accordance with this Agreement (collectively, “**Fees**”).

5.2. Pricing

- (a) Prices for Services are set forth on the Pricing Page;
- (b) Fees are calculated on the basis of usage or for a fixed amount and invoiced monthly or annually in advance;
- (c) Fees must be paid in U.S. dollars within 30 calendar days of invoice; and
- (d) Fees for Services include standard Support at no additional charge. The criteria for calculating usage may vary by Service type and feature.

5.3. Payment Disputes

Customer must assert any good faith dispute with regard to Fees in writing within ten (10) days of receipt of the invoice giving rise to the dispute. Except in the event of a good faith dispute, if Customer fails to make payment when due, without limiting WanAware's other rights and remedies: (a) WanAware may charge interest on the past due amount at a rate of 1.5% per month or, if lower, the highest rate permitted under Applicable Law; (b) Customer shall reimburse WanAware for all reasonable costs incurred by WanAware in collecting any late payments or interest, including reasonable attorneys' fees; and (c) if such failure continues for ten (10) days or more, WanAware may suspend Customer's and its Authorized Users' access to the Services until such amounts are paid in full. WanAware will not exercise its suspension or termination rights or apply interest on late Fees if Customer disputes the applicable charges reasonably and in good faith and provides reasonable cooperation to resolve the dispute.

5.4. Payment Methods

If Customer is paying Fees using a credit card or any digital payment method supported by WanAware, Customer authorizes WanAware to charge Customer's account for the Services using that payment method. Credit card payments, if made, are processed by Stripe Inc, a Level 1 PCI compliant service provider (<https://stripe.com/privacy>). Customer must keep all information in its billing account current to ensure that all Fees are charged to the appropriate account and are timely paid. If Customer notifies WanAware to stop using a previously designated payment method and fails to designate an alternative, WanAware may immediately suspend use and access to the Services. Any notice from Customer changing its billing account will not affect charges WanAware submits to Customer's billing account before WanAware can reasonably act on Customer's request. WanAware uses a third-party intermediary to manage credit card processing, and this intermediary is not permitted to use Customer's credit card information except in connection with Customer's authorized purchases. Notice (including email) from WanAware's third-party credit card processor declining Customer's credit card or otherwise relating to Customer's account will be deemed valid notice from WanAware. All payments are charged in United States Dollars and Customer is responsible for any fees or surcharges that may be applied in any currency conversion at the time of payment processing, if any.

5.5. Taxes

All Fees are exclusive of taxes, levies, duties or charges imposed by government authorities (collectively, “**Taxes**”). Except for Taxes on WanAware’s income, revenues, gross receipts, personnel or assets, Customer shall be solely responsible for all sales, service, value-added, use, excise, consumption and any other Taxes on amounts payable by Customer pursuant to this Agreement. Without limiting the foregoing, if Customer is required to deduct or withhold any Taxes under Applicable Law outside the United States, Customer is responsible for remitting such Taxes in a timely manner and in accordance with those Applicable Laws and Customer shall not offset any Fees payable to WanAware for any such remittances.

6. Order Renewal

6.1. Auto-Renewal

Unless either Party takes a non-renewal action as described in Section 6.3, Orders will automatically renew for additional Terms of the same duration as the expiring Term (each, a “**Renewal Term**”). For Orders that have a 12-month or longer duration, WanAware will give Customer Administrator notice by email on or around 30 days’ prior to the start of the Renewal Term. Such notice will include notice of pricing adjustments, if any, pursuant to Section 6.2 below. For Orders that have a duration of less than 12-months, WanAware will give Customer Administrator notice by email on or around 15 days’ prior to the start of the Renewal Term solely in connection with pricing adjustments (as described in Section 6.2) or other changes. Failure of Customer to take a non-renewal action in a timely manner, shall be deemed to constitute consent to the applicable fee increase.

6.2. Auto-Renewal Pricing Adjustments

In connection with any auto-renewal for Orders that have a duration of 12-months or longer, WanAware may increase the pricing in effect at the end of the applicable Term for the Services by up to the greater of 25% or a percentage equal to the increase for the prior 12-month period (or the prior period of the same duration as the prior Term, if longer) in the CPI – All Urban Consumers (U.S. All Items) or successor series, as published by the U.S. Bureau of Labor Statistics. Unless explicitly provided otherwise: (i) credits do not renew and promotional or one-time pricing for any Services will not be extended to any renewal; and (ii) any renewal that has a duration of less than 12-months, or where Customer seeks a reduction in the subscription quantity and/or the Term will result in re-pricing at renewal and will not be subject to the limits herein.

6.3. Non-Renewal Action

If Customer does not want to auto-renew, Customer must submit a request to their WanAware Customer Assistant at least 30 days before the expiration of the then current Term or make the desired changes within the Portal. If Customer does not want to continue to use WanAware Services, Customer can prevent incurring further expenses by submitting a Support request for disablement of Customer's account including the desired disablement date, or by providing written notice in accordance with Section 15 of this Agreement. If Customer continues to use the Services following expiration of the then current Term (other than as permitted under Section 11.5), such Services will continue to be available pursuant to WanAware's standard terms and pricing will be calculated and invoiced in accordance with the pricing on the Pricing Page. No such continued use permitted beyond expiration of a current Order shall be construed to preclude WanAware from suspending or terminating Customer's access to the Services at any time following expiration of that Order. WanAware reserves the right to provide notice of non-renewal 30 days before the end of any Order.

7. Confidentiality

7.1. Confidential Information

"Confidential Information" means any information disclosed by one Party, its Affiliates, business partners or their respective employees, agents or contractors (collectively, the **"Discloser"**) that is designated as confidential or that reasonably should be understood to be confidential or sensitive in nature. Confidential Information includes without limitation: (a) Customer Data; (b) information relating to the Discloser's or its Affiliates' technology, customers, business plans, promotional and marketing activities, finances, pricing, trade secrets and other business affairs; (c) third-party information that the Discloser is obligated to keep confidential; and (d) the terms of this Agreement and any pricing quotes. Confidential Information does not include any information that: (i) was known to the Party that receives any Confidential Information (the **"Recipient"**) prior to its disclosure by Discloser without restriction as to use or disclosure; (ii) is independently developed by the Recipient without reference to or use of the Discloser's Confidential Information; (iii) is acquired by the Recipient from another source without restriction as to use or disclosure; or (iv) is or becomes publicly available through no fault or action of the Recipient throughout no fault of Recipient or any of its Representatives (as defined below) in breach of this Agreement.

7.2. Restrictions on Use and Disclosure

The Recipient shall use at least the same degree of care that it uses to protect its own similar confidential information (but not less than a reasonable degree of care) to: (a) use the Discloser's Confidential Information only as permitted under this Agreement, unless Discloser has provided prior written consent for other uses, and (b) only disclose the Discloser's Confidential Information to Recipient's, or its Affiliates', employees, partners, contractors (including legal counsel, accountants and other professional advisors), and service providers ("**Representatives**") who (i) are bound by non-use and non-disclosure obligations at least as protective as those contained in this Agreement and (ii) have a need to know the Confidential Information for the Recipient to exercise its rights or perform its obligations under this Agreement. Recipient shall be responsible for any breach of these obligations by its Representatives to the same extent it is responsible for its own breaches. To the limited extent any use or disclosure is required by Applicable Law or a valid and binding order of a governmental body (such as a subpoena or court order), the Recipient may disclose only that portion of the Discloser's Confidential Information that it is required to disclose upon the advice of its counsel, provided that, to the extent permitted under Applicable Law, the Recipient uses reasonable efforts to give the Discloser reasonable advance notice thereof to afford the Discloser an opportunity to intervene and seek an order or other appropriate relief for the protection of its Confidential Information, at its sole cost and expense. In the event of any breach or threatened breach by the Recipient of its obligations under this Section 7.2, the Discloser will be entitled to seek injunctive and other equitable relief in any court of competent jurisdiction to enforce such obligations.

8. Customer Responsibilities and Restrictions

8.1. Customer Responsibilities

Customer will be solely responsible for: (a) Customer's Environment, including as necessary to enable Authorized Users' access and use of the Services; (b) Account Data, Customer Data and Customer Credentials (including activities conducted with Customer Credentials), subject to WanAware's obligations under this Agreement; (c) providing any required notices to, and receiving any required consents and authorizations from, Customer Component providers, Authorized Users and persons whose Personal Data may be included in Account Data, Customer Data or Customer Credentials; and (d) ensuring use of the Services is only for Customer's Environment and in accordance with the WanAware Acceptable Use Policy ("**AUP**"), WanAware Policies and applicable Customer Component Terms. Customer shall be solely responsible and liable for any claims related to how the Customer Data or any third-party's Personal Data may have been collected, stored, processed or controlled. To the extent legally permitted, WanAware states that it does not knowingly gather, process, store or otherwise control any Personal Data other than the Account Data, has no intention or desire to do so, and is not responsible for any Personal Data uploaded to any of its systems through the Services.

8.2. Customer Restrictions

No provision of this Agreement includes the right to, and Customer shall not, directly or indirectly: (a) enable any person or entity other than Authorized Users to access and use the Services; (b) attempt to gain unauthorized access to any Service or its related systems or networks; (c) use any Service to access WanAware Intellectual Property Rights except as permitted under this Agreement; (d) modify, copy or create any derivative work based upon a Service or any portion, feature or function of a Service; (e) resell, distribute or otherwise make available any Service to any third party, including as part of a managed services offering unless agreed to by the Parties in writing via an appropriate Addendum to this Agreement; (f) except to the extent limited by Applicable Law, reverse engineer, disassemble or decompile all or any portion of, or attempt to access, modify, discover or recreate the source code for, the Services; (g) access or use the Services or WanAware Policies for the purpose of competing (or enabling others to compete) with WanAware, including: copying ideas, features, functions or graphics, developing competing products or services, or performing competitive analyses; (h) remove, obscure or alter any proprietary notice related to the Services; (i) use the Services to send or store Malicious Code; (j) use or permit others to use the Services in violation of any laws; or (k) use or permit others to use the Services, including creating any backdoors or alternative methods of entry, or login, to the software other than for Customer's operations and as described in WanAware Policies and this Agreement.

8.3. WanAware Remedies

In the event WanAware reasonably believes a violation of Section 8.2 has occurred, in addition to any other remedies available at law or in equity (including termination pursuant to Section 11.2), WanAware will have the right to investigate the suspected violation and suspend any individually identified Authorized User(s), who are suspected of the violation, or the Customer Account in part or in whole, from accessing the Services for so long as is reasonably necessary to address the potential violation. WanAware will notify Customer in writing of any such suspension (each, a **"Suspension Notice"**) and work with Customer in good faith to resolve the potential violation. Such Suspension Notice will be provided in advance of suspension, unless WanAware reasonably believes the suspected violation creates an urgent or emergency situation where a failure to take immediate action may put WanAware, Customer, other WanAware customers, or other third-parties, or the rights of any of the aforementioned, at risk of imminent harm. For clarity, WanAware reserves the right, but does not assume any obligation to Customer (except with respect to the Suspension Notice), to take any of the actions described in this Section 8.3.

9. Warranty and Disclaimers

9.1. WanAware Warranties

WanAware warrants that during the Term: (a) WanAware will not materially decrease the overall security of the Services, in accordance with its Security Measures; (b) the Services will perform in accordance with the WanAware Policies in all material respects; and (c) WanAware will not materially decrease the overall functionality of the Services.

9.2. NO IMPLIED WARRANTIES

EXCEPT AS EXPRESSLY PROVIDED IN THIS AGREEMENT, NEITHER PARTY MAKES ANY WARRANTY OR GUARANTEE OF ANY KIND, WHETHER IMPLIED, STATUTORY, OR OTHERWISE, AND EACH PARTY SPECIFICALLY DISCLAIMS ALL WARRANTIES, WHETHER IMPLIED, OR STATUTORY, INCLUDING ANY IMPLIED WARRANTY OF TITLE, MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT, AND ALL WARRANTIES ARISING FROM THE REGULAR COURSE OF DEALING, USAGE OR TRADE PRACTICE, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW.

9.3. AS-IS

EXCEPT AS EXPRESSLY PROVIDED IN THIS AGREEMENT, ALL SERVICES, SUPPORT AND ANY OTHER MATERIAL ARE PROVIDED BY WANAWARE ON AN "AS IS" AND "AS AVAILABLE" BASIS. WANAWARE MAKES NO REPRESENTATION OR WARRANTY, AND HAS NO SUPPORT OBLIGATIONS OR LIABILITY, EXCEPT WITH RESPECT TO THE SERVICES AND SOLELY TO THE EXTENT SET FORTH UNDER THIS AGREEMENT. WITHOUT LIMITING THE OTHER PROVISIONS OF THIS SECTION 9, WANAWARE MAKES NO WARRANTY OF ANY KIND THAT THE SERVICES, WANAWARE POLICIES, OR ANY OTHER MATERIAL, OR RESULTS OF THE USE THEREOF, WILL: (a) MEET CUSTOMER'S OR ANY OTHER PERSON'S REQUIREMENTS; (b) OPERATE WITHOUT INTERRUPTION; (c) ACHIEVE ANY INTENDED RESULT; (d) BE ERROR FREE (INCLUDING ANY ERROR THAT MAY RESULT IN DATA CORRUPTION OR DATA LOSS); OR (e) BE COMPATIBLE, WORK WITH OR CONTINUE TO WORK WITH CUSTOMER COMPONENTS. ANY CHANGES TO CUSTOMER ENVIRONMENT, CUSTOMER COMPONENTS, OR CONNECTIONS (INCLUDING THEIR UNAVAILABILITY) OR CUSTOMER COMPONENT TERMS DURING AN ORDER TERM DO NOT AFFECT CUSTOMER'S OBLIGATIONS UNDER THE APPLICABLE ORDER OR THIS AGREEMENT.

10. Compliance with Applicable Laws

Each Party agrees to comply with all Applicable Laws, including specifically the Applicable Laws identified in Sections 10.1 below, with respect to its performance of its obligations and exercise of its rights under this Agreement.

10.1. Anti-Bribery and Anti-Corruption

Each Party shall comply with Applicable Laws concerning anti-bribery and anti-corruption, which may include the U.S. Foreign Corrupt Practices Act of 1977 and the UK Bribery Act 2010, among others. As of the Effective Date, each Party represents that it has neither received nor been offered any illegal or improper bribe, kickback, payment, gift or thing of value from any employee, agent or representative of the other Party or its Affiliates in connection with this Agreement. Each Party agrees to promptly notify the other Party if it learns of any violation of the foregoing. This representation is not intended to include customary and reasonable gifts and entertainment provided in the ordinary course of business, to the extent such gifts and entertainment are permitted by Applicable Law.

11. Term and Termination

11.1. Term

The Term of this Agreement will continue for 90 days past the expiration or earlier termination of the last Order to be in effect.

11.2. Termination for Cause

WanAware may terminate any Order upon written notice to Customer if Customer fails to pay any amount due under this Agreement that is not disputed in good faith in accordance with Section 5.2, and such failure continues more than ten (10) days after WanAware's delivery of written notice. Either Party may terminate all Orders and this Agreement, effective on written notice to the other Party, if the other Party materially breaches this Agreement, and such breach remains uncured 30 days after the non-breaching Party provides the breaching Party with written notice of such breach. In addition, either Party may terminate all Orders and this Agreement, effective on written notice to the other Party, in the event that the other Party (i) becomes insolvent, enters into bankruptcy or any similar financial reorganization or legally binds itself to any such reorganization or (ii) makes any assignment of its rights or assets for the benefit of its creditors.

11.3. Effect of Termination

Upon expiration or earlier termination of an Order: (a) subject to Section 11.5, all rights granted to Customer with respect to Services under such Order will terminate as of the effective date of termination; (b) subject to Section 11.5, WanAware will have no obligation to provide the applicable Services to Customer or Authorized Users after the effective date of the termination; and (c) subject to Section 5.2 (Payment Disputes), the Parties will make any payments required under Section 11.4.

11.4. Payments at Termination

If an Order is terminated early by Customer pursuant to Section 2 or 11.2, or by WanAware pursuant to Section 12.2: (a) Customer shall not be obligated to pay any amounts specified in the Order for Services not yet provided and (b) WanAware will refund to Customer a pro rata share of any unused amounts prepaid by Customer under the applicable Order for the Services (a “**Pro-Rated Refund**”). In all other cases, and regardless of whether Customer uses the Services at the levels reflected in the Order or otherwise, Customer will not be entitled to a refund of Fees paid and any committed Fees for the full term of the Order(s) and any Fees accrued beyond any committed Fees based on Customer’s use of the Services prior to termination will become immediately due and payable.

11.5. Customer Data Post-Termination Deletion

Subject to Applicable Laws, Customer Data post termination will be deleted in the ordinary course of business, but in no event will be retained beyond the applicable retention period required by Applicable Laws. Customer may request earlier deletion of Customer Data by submitting an organization deletion request to privacy@wanaware.com.

11.6. Survival

The provisions set forth in the following Sections, and any other right or obligation of the Parties in this Agreement that, by its nature, should survive termination or expiration of this Agreement, will survive any expiration or termination of this Agreement: 1.3 (Data), 5 (Pricing and Fees), 7 (Confidentiality), 8.2 (Customer Restrictions), 11 (Term and Termination), 12 (Indemnification), 13 (Limitations of Liability), 15 (Notices), 21 (Governing Law; Venue), and 22 (Miscellaneous).

12. Indemnification

12.1. WanAware Indemnity

Subject to Section 12.2, WanAware agrees to defend Customer, its Affiliates, and their respective employees, officers and directors (collectively, “**Customer Indemnitees**”), against any claim, demand, suit, or proceeding (“**Action**”) made or brought against Customer Indemnitees by a third party alleging that use of the Services as permitted under this Agreement infringes such third party’s Intellectual Property Rights (each, a “**Customer Claim**”), and WanAware will indemnify Customer Indemnitees from any damages, costs, and expenses (collectively, “**Losses**”) finally awarded against Customer Indemnitees as a result of a final, non-appealable judgment from a court of competent jurisdiction, or for amounts paid by Customer Indemnitees under a settlement approved by WanAware in writing for, a Customer Claim.

12.2. Infringement Remedies

If the Services become, or in WanAware's opinion are likely to become, the subject of a Customer Claim, WanAware may in its discretion and at its own expense: (a) obtain for Customer the right to continue using the Services; (b) modify the Services so that they no longer infringe or misappropriate, with no material decrease in functionality; or, if neither (a) or (b) are commercially reasonable, (c) terminate the Order solely with respect to the specific Services affected and issue a Pro-Rated Refund for amounts connected to the affected Services. WanAware will have no obligation to defend or indemnify Customer Indemnitees for any Customer Claim to the extent an Action arises from any of the following (collectively, "**Customer-Controlled Matters**"): (i) Customer's Environment; (ii) Account Data, Customer Data or Customer Credentials (including activities conducted with Customer Credentials), subject to WanAware's Processing obligations under this Agreement; or (iii) use of the Services by Customer or an Authorized User in a manner that breaches an Order, any of WanAware's Policies or this Agreement. WANAWARE'S OBLIGATIONS IN SECTIONS 12.1 AND 12.2 STATE CUSTOMER'S EXCLUSIVE REMEDIES AND WANAWARE'S ENTIRE LIABILITY FOR ANY CLAIM OF INTELLECTUAL PROPERTY RIGHTS INFRINGEMENT OR MISAPPROPRIATION.

12.3. Customer Indemnity

Customer agrees to defend WanAware and its Affiliates, and their respective employees, officers and directors (collectively, "**WanAware Indemnitees**"), against any Action made or brought against the WanAware Indemnitees by a third party arising out of or relating to Customer-Controlled Matters, and Customer will indemnify WanAware Indemnitees from any Losses finally awarded against WanAware Indemnitees as a result of a final, non-appealable judgment from a court of competent jurisdiction, or for amounts paid by WanAware Indemnitees under a settlement approved by Customer in writing, for any Action against the WanAware Indemnitees arising out of or relating to Customer-Controlled Matters.

13. Limitations of Liability

13.1. EXCLUSIONS AND LIMITATIONS

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, EXCEPT AS OTHERWISE PROVIDED IN THIS SECTION 13, (A) IN NO EVENT SHALL EITHER PARTY, ITS AFFILIATES OR THEIR EMPLOYEES, AGENTS, CONTRACTORS, OFFICERS OR DIRECTORS BE LIABLE FOR ANY INDIRECT, PUNITIVE, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES, OR FOR DAMAGES FOR BUSINESS INTERRUPTION, LOSS OF PROFITS, GOODWILL, USE, DATA OR OTHER INTANGIBLE LOSSES ARISING OUT OF OR RELATING TO THIS AGREEMENT; (B) IN NO EVENT SHALL WANAWARE, ITS AFFILIATES OR THEIR EMPLOYEES, AGENTS, CONTRACTORS, OFFICERS OR DIRECTORS BE RESPONSIBLE FOR ANY COMPENSATION, REIMBURSEMENT, OR DAMAGES ARISING IN CONNECTION WITH CUSTOMER'S INABILITY TO USE THE SERVICES, INCLUDING AS A RESULT OF ANY PERMITTED TERMINATION OR SUSPENSION OF THIS AGREEMENT OR CUSTOMER'S USE OF OR ACCESS TO THE SERVICES; OR THE COST OF PROCUREMENT OF SUBSTITUTE SERVICES; AND (C) IN NO EVENT SHALL EITHER PARTY'S CUMULATIVE AND AGGREGATE LIABILITY UNDER THIS AGREEMENT EXCEED THE FEES PAID TO WANAWARE BY OR ON BEHALF OF CUSTOMER FOR THE SERVICES GIVING RISE TO THE LIABILITY UNDER THE APPLICABLE ORDER(S), INCLUDING PRIOR ORDERS FOR THE SAME SERVICES, IN THE 12 MONTHS PRECEDING THE EVENT GIVING RISE TO THE LIABILITY. THE EXCLUSIONS AND LIMITATIONS IN THIS SECTION APPLY WHETHER THE ALLEGED LIABILITY IS BASED ON CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR ANY OTHER BASIS, EVEN IF THE NON-BREACHING PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGE. THE PROVISIONS OF THIS SECTION 13 ALLOCATE THE RISKS UNDER THIS AGREEMENT BETWEEN THE PARTIES, AND THE PARTIES HAVE RELIED ON THE EXCLUSIONS IN DETERMINING TO ENTER INTO THIS AGREEMENT AND THE PRICING FOR THE SERVICES.

13.2. Exceptions

The exclusions and limitations in 13.1 shall not apply to: (i) a Party's gross negligence, willful misconduct, or fraud in relation to this Agreement; (ii) Customer's indemnification obligations under Section 12; (iii) Customer's breach of Section 8.2; or (iv) Customer's payment obligations to WanAware under this Agreement.

14. Publicity

Neither Party shall, except as otherwise required by Applicable Law or stock exchange requirements, issue or release any announcement, statement, press release or other publicity or marketing materials relating to this Agreement or otherwise use the other Party's marks or logos without the prior written consent of the other Party. Provided, however, WanAware may include Customer's name and logo in its lists of WanAware customers or on a public website and other promotional material, in each case in accordance with any Customer brand guidelines to the extent available to WanAware.

15. Notices

15.1. Legal Notices

Legal notices shall be sent to WanAware: 1434 Spruce St, Suite 100, Boulder, CO 80302 with a copy sent by email to legal@wanaware.com, and to Customer at the physical and email addresses identified in its Order(s). All legal notices required or permitted to be given under this Agreement, shall be in writing and shall be deemed to be sufficiently given (i) one business day after being sent by overnight courier to the Party's physical address and by email; or (ii) three business days after being sent by registered mail, return receipt requested, to the Party's physical address and by email.

15.2. Other communications

All other notices required or permitted to be given under this Agreement shall be in writing and shall be deemed to be sufficiently given two business days after being sent, unless sender has knowledge that such notice was not received.

(a) To WanAware

For all other notices or communications, Customer may contact WanAware by email: notices@wanaware.com.

(b) To Customer

For all other notices or communications to Customer, WanAware will contact (i) a Customer Administrator (including in connection with Section 8.3) via email; (ii) Customer's billing contact provided in an applicable Order or in the Account Data (in connection with Section 5) via email; or (iii) for notices not specific to Customer, through the Services.

16. Free and Beta Services

From time to time and in WanAware's sole and exclusive discretion, WanAware may make available to Customer certain services, features or functionalities that are not generally made available to WanAware customers, the general public and/or is designated as beta, pilot, preview, or similar designation ("**Beta Services**"). Such Beta Services are to be considered for testing purposes only, and may be subject to additional disclaimers, instructions, liabilities, risks, or other guidelines. Any such programs will be governed by the specific Order or Beta Services agreement by which Customer is given access to the Beta Services, which will overrule anything to the contrary contained herein.

17. Indirect Purchases

If Customer is purchasing the Services through a third party marketplace or a WanAware approved reseller (each an "**Intermediary**"), the following terms shall apply solely for the purposes of such indirect purchase: (a) all references to an 'Order' in the Agreement shall refer to the order between the Customer and the Intermediary; (b) in addition to the rights provided in Section 1.3 (Data), WanAware is permitted to share

Usage Data and other information regarding Customer with the Intermediary; (c) Sections 5 (Pricing and Fees) and 6 (Enterprise Plan Renewal) will be without effect and the terms between the Intermediary and Customer covering such subject matter will apply instead; (d) per the terms of the agreement between WanAware and the Intermediary, WanAware has a right to terminate its order(s) with the Intermediary, in the event of failure by Intermediary to make payments to WanAware; (e) Sections 11.2, 11.3, and 11.4 (Termination) will be without effect as any termination of an Order and all terms in this Agreement with respect to refund or payment obligations, if any, will be between the Intermediary and Customer; notwithstanding the foregoing, both Parties agree to take the required steps through the Intermediary processes in order to achieve the intended results of the terms in Section 11.2, 11.3, and 11.4 and any other refund or payment obligations.

18. Third Party Access Terms

To the extent that any service provider or WanAware-authorized partner (each a “**Service Provider**”) accesses or uses the Services in connection with its provision of services to Customer, each Service Provider user shall be deemed an Authorized User and WanAware shall have the right to enforce the following sections of this Agreement with respect to the Service Provider’s activities: 1 (Access and Use), 4 (Security and Privacy), 7 (Confidentiality), 8 (Customer Responsibilities and Restrictions), 10 (Compliance with Applicable Laws), and 12 (Indemnity). As between WanAware and Service Provider, references to Customer in those Sections shall be deemed references to Service Provider, except with respect to the defined terms of Customer Environment and Customer Data. For the avoidance of doubt, Service Provider is not a beneficiary of this Agreement.

19. Assignment

WanAware may assign this Agreement and all Orders at its sole and exclusive discretion to an Affiliate, or in connection with any merger, consolidation or reorganization, or a sale of all or substantially all of such WanAware’s business or assets relating to this Agreement to an unaffiliated third party. Customer may not assign any of its rights or obligations under this Agreement, whether by operation of law or otherwise, without WanAware’s prior written consent. Any purported assignment in violation of this Section is void. This Agreement is binding upon and inures to the benefit of the Parties hereto and their respective permitted successors and assigns.

20. Force Majeure

Neither Party shall be liable or responsible to the other Party, nor be deemed to have defaulted under or breached this Agreement, for any failure or delay in fulfilling or performing any term of this Agreement (except for any obligations to make payments for Services received), when and to the extent such failure or delay is directly caused by events outside of the reasonable control of the affected Party, including acts of God; health or hygiene emergencies, such as epidemic or pandemic related safety measures, lockdowns or curfews; flood, fire or explosion; war, invasion, riot or other civil unrest; terrorist or criminal acts; cyberattacks; internet disruptions; embargoes or blockades in

effect on or after the date of this Agreement; or national or regional emergencies (each of the foregoing, a “**Force Majeure Event**”), provided that, in each case, the affected Party will provide prompt notice to the other Party, stating the period of time the occurrence is expected to continue, and use diligent efforts to end the failure or delay and minimize the effects of such Force Majeure Event.

21. Governing Law; Venue

Except to the extent the issue arising under this Agreement is governed by United States federal law, this Agreement shall be governed by and construed and enforced in accordance with the laws of the State of New York, without giving effect to the choice of law rules of that state. Any legal action or proceeding arising under or relating to this Agreement shall be brought exclusively in the state or federal courts located in New York, USA, and the Parties expressly consent to personal jurisdiction and venue in those courts. The Parties agree that the United Nations Convention on Contracts for the International Sale of Goods are specifically excluded from application to this Agreement.

22. Miscellaneous

22.1. Entire Agreement

This Agreement, together with all Orders and the AUP, is the complete and exclusive agreement between the Parties and supersedes all proposals, questionnaires and other communications and agreements between the Parties (oral or written) relating to the subject matter of this Agreement. Any terms and conditions of any other instrument issued by Customer in connection with this Agreement which are in addition to, inconsistent with or different from the terms and conditions of this Agreement shall be of no force or effect. Additionally, this Agreement supersedes: any confidentiality, non-disclosure, evaluation or trial agreement previously entered into by the Parties with respect to Customer's or an Affiliate's evaluation of the Services or otherwise with respect to the Services. This Agreement shall not be construed for or against any Party to this Agreement because that Party or that Party's legal representative drafted any of its provisions.

22.2. U.S. Government Customers

The Services and WanAware Policies are provided to the U.S. Government as "commercial items," "commercial computer software," "commercial computer software documentation," and "technical data" with the same rights and restrictions generally applicable to the Services and WanAware Policies. If Customer or any Authorized User is using Services and WanAware Policies on behalf of the U.S. Government and these terms fail to meet the U.S. Government's needs or are inconsistent in any respect with federal law, Customer and Customer's Authorized Users must immediately discontinue use of the Services and WanAware Policies. The terms listed above are defined in the Federal Acquisition Regulation and the Defense Federal Acquisition Regulation Supplement.

22.3. Independent Parties; No Third-Party Beneficiaries

The Parties expressly understand and agree that their relationship is that of independent contractors. Nothing in this Agreement shall constitute one Party as an employee, agent, joint venture partner or servant of another. This Agreement is for the sole benefit of the Parties hereto and their respective successors and permitted assigns and nothing herein, express or implied, is intended to or shall confer on any other person any legal or equitable right, benefit or remedy of any nature whatsoever under or by reason of this Agreement.

22.4. Amendment

Except as otherwise provided in Section 22.8, this Agreement may be modified only by a written instrument duly executed by authorized representatives of the Parties.

22.5. No Waiver

The failure of a Party to exercise or enforce any condition, term or provision of this Agreement will not operate as a waiver of such condition, term or provision. Any waiver by either Party of any condition, term or provision of this Agreement shall not be construed as a waiver of any other condition, term or provision.

22.6. Severability

If any provision of this Agreement is held invalid or unenforceable, the remainder of the Agreement shall continue in full force and effect.

22.7. Headings

The headings in this Agreement are for reference only and shall not affect the interpretation of this Agreement. For purposes of this Agreement, the words “include,” “includes” and “including” are deemed to be followed by the words “without limitation”; the word “or” is not exclusive; and the words “herein,” “hereof,” “hereby,” “hereto” and “hereunder” refer to this Agreement as a whole.

22.8. Changes to this Agreement

WanAware may modify this Agreement at any time by posting a revised version online, which modifications will become effective as of the first day of the calendar month following the month in which they were first posted; provided, however, that if an Order specifies a fixed term of 12 months or longer, the modifications will instead be effective immediately upon the start of the next Renewal Term. In either case, if Customer objects to the updated Agreement, as its sole and exclusive remedy, Customer may choose not to renew in accordance with Section 6.3. For the avoidance of doubt, any Order is subject to the version of the Agreement in effect at the time of the Order. Older versions of this Agreement can be found on WanAware’s website.

23. Definitions

Capitalized terms not otherwise defined in this Agreement shall have the respective meanings assigned to them in this Section 23.

“Account Data” means information about Customer that Customer provides to WanAware in connection with the creation or administration of its WanAware accounts, such as first and last name, username and email address of an Authorized User or Customer’s billing contact. Customer shall ensure that all Account Data is current and accurate at all times during the applicable Order Term, and shall in no event include Sensitive Information in Account Data. Account Data is subject to WanAware’s Privacy Policy.

“Affiliate” means, with respect to a Party, a business entity that directly or indirectly controls, is controlled by or is under common control with, such Party, where “control” means the direct or indirect ownership of more than 50% of the business entity.

“Applicable Laws” means any and all governmental laws, rules, directives, regulations, decrees or orders that are applicable to a particular Party’s performance under this Agreement.

“AUP” means WanAware’s standard Acceptable Use Policy available online.

“Authorized User” means an individual employee, agent, contractor, or service provider (subject to Section 18 (Third Party Access Terms)) of Customer or a Customer Affiliate who has been supplied user credentials to access the Services by Customer (or by WanAware at Customer’s request).

“Available” means with respect to each Standard Service, that the Standard Service being used by Customer is available for access. Availability is assessed from the point where the Standard Service is made available from WanAware’s hosting provider and measured in minutes over the course of each calendar month during the Term. Customer may request Availability information by submitting a Support request.

“Customer Administrator” means the individual(s) identified in the Account Data as admin users.

“Customer Environment” means the systems, platforms, services, software, devices, sites and/or networks that Customer uses for its operations (exclusive of the subscribed Services).

“Data Processing Addendum” means WanAware’s standard Data Processing Addendum (“DPA”) available online (or upon written request) or, if the Parties have a separately executed agreement in effect that covers the same subject matter, the separately executed agreement.

“Data Protection Laws” means Applicable Laws concerning the privacy and protection of Personal Data.

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“Exceptions” means any of: (a) Customer’s breach of this Agreement, an Order or the AUP; (b) Customer’s failure to configure and use the Services in accordance with the WanAware Policies; (c) failures of, or issues with, Customer’s Environment; (d) Force Majeure Events; (e) WanAware’s suspension of Authorized Users’ access to the Services pursuant to Section 5.2 or 8.3; or (f) maintenance during a window for which WanAware provides notice to Customer Administrator by email or through the Services in advance.

“Feedback” means bug or other system reports, suggestions or other feedback with respect to the Services or WanAware Policies provided by or on behalf of Customer to WanAware, exclusive of any Customer Confidential Information therein.

“Intellectual Property Rights” means any and all registered and unregistered rights granted, applied for, or otherwise now or hereafter in existence under or related to any patent, copyright, trademark, trade secret, database protection, or other intellectual property rights laws, including any derivative works thereof, and all similar or equivalent rights or forms of protection, in any part of the world.

“Malicious Code” means code, files, scripts, agents or programs intended to do harm, including, for example, viruses, worms, time bombs, and Trojan horses.

“Order” means an order that sets out the Services that Customer requests WanAware to provide (whether in manual format or as submitted in the Portal or via WanAware’s website/ API).

“Party” means each of WanAware and Customer.

“Personal Data” means any information relating to an identified or identifiable natural person, or as otherwise described by Applicable Law.

“Portal” means WanAware’s online customer service interface at [\[insert URL\]](#).

“Pricing Page” means the web page(s) where WanAware publishes its list prices for Services.

“Privacy Policy” means WanAware’s standard Privacy Policy available online.

“Process” means to perform an operation or set of operations on data, content or information, including to submit, transmit, post, transfer, disclose, collect, record, organize, structure, store, adapt or alter; “Processing” has a correlative meaning.

“Security Measures” means the means the technical, organizational, and administrative safeguards implemented by WanAware to protect systems, networks, and data against unauthorized access, use, disclosure, alteration, or destruction. Such measures include, but are not limited to, encryption, access controls, monitoring, logging, vulnerability management, and policies and procedures designed to maintain confidentiality, integrity, and availability of services and customer data.

“Sensitive Information” means (a) government-issued identification numbers, including Social Security numbers; (b) financial information; (c) special categories of personal data subject to Article 9 of the GDPR; (d) personal data relating to criminal convictions and offenses subject to Article 10 of the GDPR; (e) protected health information subject to the Health Insurance Portability and Accountability Act of 1996, as amended; and (f) any other information that is subject to specific or heightened

requirements under Applicable Law or industry standards. “GDPR” means the General Data Protection Regulation 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the Processing of personal data and on the free movement of such data, and repealing of Directive 95/46/EC.

“**Service Plan(s)**” means the packaged plan and associated features, as detailed at the Pricing Page, for the hosted WanAware service to which Customer subscribes.

“**Services**” means the hosted services that are made available by WanAware online via its Portal and other web pages designated by WanAware, that WanAware makes available from time to time on a fee-based basis, together with any related APIs, applications, or software that may be used in conjunction or in a stand-alone basis. “Services” does not include (a) any services provided without charge or any pilots or other pre-commercial releases of a WanAware product or service (or feature of functionality of a Service); and (b) any tools or other services, which are not individually essential for the functioning of the Services, that WanAware makes available pursuant to separate license terms.

“**Standard Service**” means each Service/feature on the Order that is available on the WanAware Portal and for which there is committed spend in the affected month.

“**Term**” means the term for the use of the Services specified in the applicable Order or, for pay-as-you-go, each day during which Customer uses the Services.

“**Threat Actor Data**” means any data related to unauthorized third party bad actors and associated Malicious Code or other information or data relating to the third party bad actor or their actions that is collected or discovered through or during the use of the Services by WanAware customers, excluding any such information or data that identifies Authorized Users or Customer.

“**WanAware Customer Assistant**” means the WanAware representative assigned to facilitate Customer’s relationship with WanAware.

“**WanAware Operations Data**” means data pertaining to, or used in, the operations, use and testing of the Services including data arising from Customer’s use of the Services, aggregated data on third party components, aggregated and/or anonymized data as described in Section 1.3, and other data and information that informs the Services.

“**WanAware Policies**” means WanAware’s standard general policies for the use of the Services, including its AUP, its Privacy Policy, and any other terms and conditions that WanAware may post, publish, modify or update from time to time in its sole discretion.

	WANAware, Inc
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Signature:	Signature:
Printed Name:	Printed Name:
Title:	Title:
Date:	Date:

Effective 1 February, 2026